SUPREME COURT OF THE UNITED STATES

No. 26A305

UNITED STATES POSTAL SERVICE, ET AL. *v.* CALIFORNIA, ET AL.

ON APPLICATION FOR STAY

[September 14, 2026]

The application for stay presented to JUSTICE JACKSON and by her referred to the Court is denied. The Government is unlikely to succeed on the merits of its challenge to the District Court's preliminary injunction. And the equitable factors applicable for obtaining emergency relief from this Court do not favor a stay.

JUSTICE KAVANAUGH, concurring.

In my view, based on the briefing the Court has received at this interim stage, there is at least a fair prospect that the final rule falls within the Postal Service's statutory authority. See 39 U. S. C. §401(2). But applying the rule in the 2026 elections would be arbitrary and capricious in violation of the Administrative Procedure Act because state and local election officials do not have sufficient time to reasonably implement the rule before the elections. See 39 U. S. C. §3001(m); 5 U. S. C. §706(2)(A). For that reason, I concur in the denial of the application for stay.